IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON

STATE OF OREGON, Plaintiff, vs. ASHLE PENN, Defendant.	No. 24CR27775 (DA 431319) **STATE'S OBJECTION TO DISMISSAL PURSUANT TO *STATE V. ROBERTS***

Comes now, the State of Oregon, by and through William Stabler, Deputy District Attorney, to state its objection to the Court's anticipated dismissal of this matter pursuant to *State v. Roberts*, 374 Or. 821 (2026).

State v. Roberts

As the Court is aware, *State v. Roberts* drastically changed the legal landscape for unrepresented defendants in pretrial criminal proceedings. *State v. Roberts*, 374 Or 821 (2026). In short, *Roberts* requires the dismissal of all pending pretrial criminal proceedings in which an unrepresented defendant has been without court-appointed counsel for 60 or 90 days. *Id*. While the *Roberts* opinion noted that "dismissal of the criminal charges without prejudice is ordinarily required" for cases in this posture, it left open the possibility for the Court to decline to dismiss a case "for exceptionally good cause." *Id*. at 859 n. 15. Specifically, the opinion noted:

> Because we cannot foresee all the possible circumstances that may arise in the future, we leave open the possibility that, in truly extraordinary circumstances, a court could decline to dismiss a case after the 60- or 90-day period for exceptionally good cause.

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Id. However, the opinion left no indication as to what circumstances might constitute "truly extraordinary circumstances" or "exceptionally good cause."

Factual Summary

On January 21, 2024, the Defendant went to an Xfinity store in Hillsboro. While at the store, the Defendant stole a personal cell phone belonging to the victim. The theft was captured on video, which clearly showed the Defendant taking the cell phone. The phone was ultimately recovered in the Portland area. The value of the phone was over $1000.

Procedural History

The Defendant landed on the OPDC list after firing two court-appointed attorneys. The relevant procedural history is as follows:

- June 13, 2024 – Defendant was arraigned on a Secret Indictment charging Defendant with Theft in the First Degree. Sunny Sidman, an attorney with Harris, Velazquez, and Gibbens, was appointed to represent Defendant.
- October 1, 2024 – Attorney Sidman filed a Motion to Withdraw, citing "a breakdown in the attorney-client relationship that counsel believes is irreparable."
- October 8 -10, 2024 – Attorney Sidman was permitted to withdraw. Anna Lasher, an attorney with the Cornerstone Law Group was appointed to represent Defendant.
- April 9, 2024 – Attorney Lasher filed a Motion to Withdraw, citing "a breakdown of the attorney-client relationship."
- April 28, 2024 – Attorney Lasher was permitted to withdraw. OPDC was appointed.

Case Specific Circumstances Constituting "Exceptionally Good Cause"

This case presents a situation where the Defendant fired two court-appointed attorneys, resulting in their status on the OPDC list. The Defendant should not benefit from a potential dismissal of their

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case that is the direct result of the Defendant's inability to work with two separate court-appointed attorneys. Here, the Defendant's actions are the sole reason the Defendant is possible subject to dismissal under *Roberts*. Had the Defendant been able to work with one of the two attorneys appointed to represent her, this case would not be subject to dismissal. As a result, the Court should find that the Defendant's status as an unrepresented Defendant is not attributable to the State, but rather to the Defendant herself. Accordingly, the Court should find "exceptionally good cause" not to dismiss Defendant's case.

DATED: 02/19/2026

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RE: State v. ASHLE ANTOINETTE PENN 24CR27775 (DA # 431319)

DOCUMENT(S):
Objection

CERTIFICATE OF SERVICE – TRUE COPY

I hereby certify that I served a true copy of the above-named document(s) on Defendant by the following method:

☐ ~~***OJD eFiling System:*** to said attorney's email address as recorded on the date of service in the eFiling system.~~

☐ ***Electronic Transmission:*** to said attorney's email address: anna@cornerstone-lawgroup.com

☐ ***Interoffice:*** into said attorney's mail pickup at the District Attorney's office at Hillsboro Oregon.

☒ ***Mail:*** to said defendant's address:
Ashle Antoinette Penn
17548 NW Springville Rd Apt 9
Portland OR 97229

☐ ***Personal Service:*** to said attorney by personally handing him/her a true copy thereof

☐ ***Facsimile Transmission:*** to said attorney's fax number:

Dated: February 19, 2026

William Stabler
Deputy District Attorney
Attorney(s) for Plaintiff

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